pdoom UG (haftungsbeschränkt)
Volkartstr. 43, 80636 München, Germany
Project: crowd-cast data collection

crowd-cast Data Purchase and Participation Agreement

Between: pdoom UG (haftungsbeschränkt) ("p(doom)")
And: (), the Participant

What this agreement covers

You are participating in crowd-cast, a data collection project run by p(doom). crowd-cast is a desktop recorder that captures screen recordings, keyboard/mouse events, and app/window metadata from applications you choose, along with technical and diagnostic data about the recorder. The goal is to collect real human computer-work data for AI research and commercial AI development.

This agreement sets out the terms under which p(doom) purchases this data from you. It also applies to data you uploaded before accepting it. The amount of compensation for periods before you accepted this agreement is governed by the terms that applied at the time. Any compensation paid after you accept this agreement, including for those earlier periods, is paid as the purchase price under this agreement.

Your role

- You are a private individual, not an employee, freelancer, contractor-for-hours, agent, or representative of p(doom).
- There is no employment relationship between you and p(doom).
- You may install and use crowd-cast to passively record your own computer work.
- You decide when and whether to record. p(doom) does not assign tasks, working hours, deliverables, methods, or a work schedule.
- p(doom) does not supervise your work.

What you are paid for

Payment is the purchase price for accepted data, not compensation for labor time. You are selling data, not working for p(doom).

p(doom) reviews uploaded data for project relevance, technical quality, and legal/privacy safety. p(doom) may reject data that is private or sensitive (including other people's personal data), corrupted, or legally risky, and may also reject data that is staged or mostly idle. Rejected data is deleted and is not paid for. All other uploaded data is accepted. p(doom) will exercise its right to reject in good faith. For data that is staged or mostly idle, p(doom) may adjust compensation instead of rejecting it (see Compensation).

Compensation

Your monthly compensation is the amount stated in your personal agreement for regular contributions of qualifying recording data. If your payout currency differs from the currency of that amount, payment will be converted at the prevailing exchange rate of the payment provider on the date of transfer. Compensation starts on the day p(doom) activates your participation. Your first 7 days are a trial week, paid at one quarter of your monthly amount. After that, compensation accrues per calendar month, pro rata for partial months, and is paid in the regular payout after the month ends. If the volume or quality of accepted data for a period is significantly below regular levels, for example because recordings are staged or mostly idle, p(doom) may reduce compensation for that period in proportion to the shortfall. The reason for any reduction is stated in the payment statement or the accompanying email, and the participant may terminate the agreement if they do not accept it.

The stated amount is a total amount. No value-added tax (VAT) is added on top; should any statutory VAT unexpectedly apply, it is treated as included in this amount.

What you may record

- Your own pre-existing computer work (work you would be doing anyway).
- Work you own or have permission to share.

What you must NOT record

- Employer-confidential or client-confidential material
- NDA-covered work
- Private messages or personal conversations
- Other people's personal data, such as colleagues', clients', or patients' records
- Meetings or calls
- Passwords, credentials, or login screens
- Medical, legal, or financial records
- Any material you do not have the right to share

Rights in your data

When you upload data through crowd-cast, you sell it to p(doom). The compensation under this agreement is the purchase price for the accepted data and for the rights in it described here. With each upload, you grant p(doom) the exclusive, irrevocable, worldwide, and perpetual right to use the data (ausschließliches Nutzungsrecht, Section 31(3) UrhG), including any rights you may hold in it. "Your data" means everything crowd-cast uploads: screen recordings, keyboard and mouse events, app/window metadata, and technical and diagnostic data. This also applies to data you uploaded before accepting this agreement. p(doom) does not publish or license the recorder's diagnostic logs. This right includes the right to:

- Reproduce, store, and archive the data
- Distribute, publish, and make publicly available
- Modify, adapt, and create derivative works
- Use for AI model training, evaluation, and benchmarking
- Include in datasets for research and commercial purposes
- Sublicense, sell, and commercially distribute the data or derivative works

These usage rights survive termination of this agreement, are permanent regardless of whether your participation continues, and do not revert to you. If p(doom) rejects data, p(doom) deletes it. p(doom) may exercise these rights without attribution. You agree that p(doom) may grant sublicenses and may transfer these rights, in whole or in part, to third parties, including licensees, buyers of the dataset, and any successor to p(doom)'s business (Sections 34 and 35 UrhG).

You consent to the use of your data without attribution (Namensnennungsrecht) and agree not to object to modifications of your data for the purposes described above.

Both parties acknowledge that all types of use listed in this agreement (including research, dataset construction, AI model training and evaluation, public dataset release, and commercial distribution) are known and established types of use at the time of this agreement.

These rights cover the uploaded data as such, not the work shown in it. Your research, code, writing, results, and any other work you do while recording remain entirely yours, and you remain free to use, publish, and commercialize that work in any way. You also keep the right to view and download your own uploaded data for your personal use.

These usage rights are without prejudice to your statutory data protection rights, which are described in the Privacy and Recording Consent.

You confirm that, to the best of your knowledge, you have the right to provide this data and grant these usage rights, and that you have followed the rules above on what you must not record.

Indemnification

You agree to indemnify and hold p(doom) harmless from claims, damages, losses, or expenses arising from: (a) your breach of this agreement, (b) your recording of material you did not have the right to share, or (c) any third-party claim that your submitted data infringes intellectual property rights, privacy rights, or confidentiality obligations. This indemnification is limited to cases of intentional or grossly negligent breach on your part.

Limitation of liability

p(doom)'s liability for damages under this agreement is as follows: liability for intent (Vorsatz) and gross negligence (grobe Fahrlässigkeit) is unlimited. Liability for culpable injury to life, body, or health is unlimited. Liability for breach of essential contractual obligations (Kardinalpflichten) through ordinary negligence is limited to foreseeable, contract-typical damages. Essential contractual obligations are obligations whose fulfilment makes proper performance of this agreement possible in the first place and on whose fulfilment you may regularly rely, such as paying compensation for accepted data. Otherwise, p(doom) is not liable for ordinary negligence. Liability under the German Product Liability Act (Produkthaftungsgesetz) remains unaffected.

Monthly statements

p(doom) may issue monthly Auszahlungsbelege (Data Purchase Statements) documenting each payment. These statements are not invoices under German VAT law (UStG). No VAT is shown and no input VAT (Vorsteuer) is claimed.

Tax responsibility

You are responsible for determining and fulfilling any tax obligations arising from payments you receive under this agreement, in your country of residence or tax jurisdiction. p(doom) does not withhold income tax, wage tax, social security contributions, or VAT for private individual participants unless required by applicable law.

Termination

Either party can end this agreement at any time, for any reason, with no penalty. Notice by email is sufficient. Compensation for the period up to the end of the agreement is paid pro rata in the next regular payout. Termination does not affect rights already granted in your data.

Right of withdrawal (Widerrufsrecht)

You have the right to withdraw from this agreement within 14 days without giving any reason. The withdrawal period expires 14 days after the day of the conclusion of the contract. To exercise the right of withdrawal, you must inform p(doom) (pdoom UG, Volkartstr. 43, 80636 München, Germany, mihir@pdoom.org) of your decision to withdraw by an unequivocal statement (e.g. an email). You may use the following model withdrawal form, but it is not obligatory:

"I hereby give notice that I withdraw from my crowd-cast Data Purchase and Participation Agreement. Concluded on [date]. Name of participant. Address. Signature (only if sent on paper). Date."

If you withdraw within the 14-day period, data you uploaded under this agreement is deleted and is not paid for, and you do not have to return anything. p(doom) will confirm the withdrawal within 14 days.

If you withdraw after accepting an updated version of this agreement, the previous version continues to apply.

Changes to this agreement

p(doom) may propose changes to this agreement. Changes apply once you accept them, including to data

you have already uploaded where the changes say so. If you do not accept, you may stop participating; data you have already uploaded remains subject to the terms under which you uploaded it.

Governing law

This agreement is governed by German law. If you are a consumer, this does not deprive you of the protection of mandatory provisions of the law of the country where you habitually reside. If a dispute arises, both parties will try to resolve it informally first.